RESOLUTION NO. 23 - 2021

RESOLUTION ESTABLISHING MANDATORY COVID-19 VACCINATION FOR SAN JUAN COUNTY, WASHINGTON EMPLOYEES AND VOLUNTEERS

WHEREAS, the coronavirus disease 2019 (COVID-19) is caused by a virus that spreads easily from person to person which may result in serious illness or death and has been classified by the World Health Organization as a worldwide pandemic; and

WHEREAS, on February 29, 2020, Governor Inslee issued Proclamation 20-05, proclaiming a State of Emergency for all counties throughout the state of Washington as a result of COVID-19 outbreak in the United States and confirmed person-to-person spread of COVID-19 in Washington state; and

WHEREAS, on March 13, 2020, the County Council issued Resolution 08-2020, proclaiming a State of Emergency for San Juan County as a result of the COVID-19 outbreak; and

WHEREAS, on March 13, 2020, the President of the United States issued a presidential proclamation declaring that the COVID-19 outbreak in the United States is a national emergency; and

WHEREAS, COVID-19 has and continues to spread throughout Washington State and is present in San Juan County, significantly threatening the life and health of persons in San Juan County; and

WHEREAS, although COVID-19 continues as an ongoing and present threat in San Juan County, life-saving vaccines have made a difference and have altered the course of the pandemic in fundamental ways; and

WHEREAS, COVID-19 vaccines are effective in reducing infection and serious disease, widespread vaccination is the primary means we have as a county to protect everyone, including persons who cannot be vaccinated for medical reasons, youth who are not eligible to receive a vaccine, immunocompromised individuals, and other vulnerable persons; and

WHEREAS, COVID-19 vaccinations have been available in San Juan County from January 2021 to the present, and since April 15, 2021, all Washingtonians over the age of 16 have been eligible to receive free COVID-19 vaccinations from county providers, medical clinics and local pharmacies; and

WHEREAS, COVID-19 vaccines are safe and effective. COVID-19 vaccines were evaluated in clinical trials involving tens of thousands of participants and met the U.S. Food & Drug Administration's rigorous scientific standards for safety, effectiveness, and manufacturing quality needed to support emergency use authorization; and, to date, more than 356 million doses of COVID-19 vaccines have been given in the United States with approximately 13,200 of those doses administered in San Juan County, and serious safety problems and long-term side effects are rare; and

WHEREAS, it is the duty of every employer to protect the health and safety of employees by establishing and maintaining a healthy and safe work environment and by requiring all employees to comply with health and safety measures; and

WHEREAS, on July 6, 2021, the Office of Legal Counsel of the United State Department of Justice issued a legal opinion stating that governments were not prohibited by federal law from imposing vaccination mandates, even when the only vaccines available are those authorized under U.S. Food and Drug Administration Emergency Use Authorizations; and

WHEREAS, COVID-19 continues to spread, is currently infecting increasing numbers of people in San Juan County, and is a particular threat to those who remain unvaccinated;

NOW, THEREFORE, BE IT RESOLVED by the County Council of San Juan County, state of Washington, based on the foregoing recitals and the continued existence of a State of Emergency in San Juan County as described in Resolution 08-2020, which remains in effect, as follows:

1. Prohibitions. This resolution prohibits:

a. Any employee or volunteer from engaging in work for San Juan County after October 31, 2021 if the employee or volunteer has not been fully vaccinated against COVID-19 and provided proof thereof to the county;

b. Any department or manager of San Juan County from permitting an employee or volunteer of San Juan County under their supervision to engage in work for the county after October 31, 2021 if the individual has not been fully vaccinated against COVID-19 and provided proof thereof to the county;

2. Exemptions from Vaccine Requirement.

a. Employees and volunteers for San Juan County are not required to get vaccinated against COVID-19 if they are entitled under the Americans With Disabilities Act (ADA), Title VII of the Civil Rights Act of 1964 (Title VII), the Washington Law Against Discrimination (WLAD), or any other applicable law to a disability-related reasonable accommodation or a sincerely held religious belief accommodation to the requirements of this resolution. As provided in the ADA, Title VII, and the WLAD, San Juan County is not required to provide such accommodations if they would cause undue hardship.

b. To the extent permitted by law, before San Juan County will provide a disability-related reasonable accommodation to the requirements of this resolution, any San Juan County employee or volunteer requesting the accommodation must provide documentation from an appropriate health care or rehabilitation professional authorized to practice in the State of Washington stating that the individual has a disability that necessitates an accommodation and the probable duration of the need for the accommodation.

c. To the extent permitted by law, before San Juan County will provide a sincerely held religious belief accommodation to the requirements of this resolution, any San Juan County employee or volunteer requesting such accommodation must document that the request for an accommodation has been made and the document must include a statement regarding the way in which the requirements of this resolution conflict with the religious observance, practice, or belief of the individual.

3. Acceptable Proof of Full Vaccination Against COVID-19: Where required above, San Juan County employees and volunteers must provide proof of full vaccination against COVID-19 by providing one of the following: (a) a CDC COVID-19 Vaccination Record Card or clearly legible photo of the card; (b) Documentation of vaccination from a health care provider or electronic health record; or (c) State immunization information system record. Personal attestation is not an acceptable form of verification of COVID-19 vaccination.

4. Availability of vaccines:

a. The San Juan County Health and Community Services will make vaccinations available to unvaccinated San Juan County employees and volunteers free of charge at locations on San Juan Island, Lopez Island and Orcas Island at or near to the employees' and volunteers' work site.

b. San Juan County Health and Community Services will administer vaccinations to San Juan County employees during the normal work week (Monday thru Friday or Monday thru Thursday for employees working an alternate schedule) so that the San Juan County employees experience no loss of income for time spent receiving the vaccination.

c. San Juan County employees and volunteers may choose to seek vaccinations from other providers and as of the date of this resolution, those vaccines are provided free of charge. In the unlikely event the employee incurs a charge, the employee may submit a request for reimbursement to their supervisor for processing.

5. Severability. The specific prohibitions in this resolution are severable and do not apply to the extent that compliance with a prohibition would violate (a) any U.S. or Washington constitutional provision; (b) federal statutes or regulations; (c) any conditions that apply to the county's receipt of federal funding; (d) state statutes; or (e) applicable orders from any court of competent jurisdiction.

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ADOPTED this 24 day of AUGUST 2021.

ATTEST: Clerk of the Council

Nadine Varsovia (Sep 3, 2021 14:01 PDT)

Ingrid Gabriel, Clerk Date

COUNTY COUNCIL
SAN JUAN COUNTY, WASHINGTON

Jamie Stephens, Chair
District 3

REVIEWED BY COUNTY MANAGER

Mike Thomas (Aug 24, 2021 15:16 PDT)

Michael J. Thomas Date

Christine Minney (Aug 25, 2021 14:21 PDT)

Christine Minney, Vice-Chair
District 1

RANDALL K. GAYLORD
APPROVED AS TO FORM ONLY

By: _____

Date

Cindy Wolf (Sep 3, 2021 13:57 PDT)

Cindy Wolf, Member
District 2